

24STCV03877 24STCV03877

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-08

Motion: DEFENDANTS' MOTION FOR SUMMARY JUDGMENT, OR IN THE ALTERNATIVE, ADJUDICATION

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Case Number: 24STCV03877 Hearing Date: September 8, 2026 Dept: 731

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - CENTRAL DISTRICT

PIERRE JEAN FRANCOIS, an individual,

Plaintiff,

vs.

STITCH INDUSTRIES INC., a Delaware corporation; RIYAH HIGGINS, an individual; and DOES 1 through 10, inclusive;,,

Defendant.

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CASE NO: 24STCV03877

[TENTATIVE] ORDER RE: DEFENDANTS' MOTION FOR SUMMARY JUDGMENT, OR IN THE ALTERNATIVE,
ADJUDICATION

Dept. 731

September 8, 2026

9:30 a.m.

Matter No. 17

Moving Party: Defendants, Stitch Industries and Riyah Higgins

Opposing Party: Plaintiff, Pierre Jean Francois

Notice: OK

Background Facts

Pleadings

Plaintiff Pierre Jean Francois ("Plaintiff") brings a February 15, 2024 Complaint against Defendants Stitch Industries Inc. ("Stitch"), Riyah Higgins ("Higgins"), and Does 1–10 alleging claims for (1) Discrimination Based on Race/Color, (2) Harassment Based on Race/Color, (3) Discrimination Based on National Origin, (4) Harassment Based on National Origin,

(5) Discrimination Based on Sex/Gender, (6) Failure to Prevent Discrimination and Harassment, (7) Retaliation under FEHA, (8) Whistleblower Retaliation under Labor Code § 1102.5, and (9) Wrongful Termination in Violation of Public Policy.

The Complaint alleges that Plaintiff, a Black man originally from Haiti, was hired as a Designer at Stitch's West Hollywood location and soon became the target of persistent discrimination and harassment by female, non-Black coworkers, particularly Higgins, who allegedly used racial slurs, made derogatory comments about his national origin, discouraged him from speaking to customers, and engaged in threatening conduct including nearly striking him with her car. Plaintiff alleges that despite repeatedly reporting experienced harassment to management and HR—including racial slurs, fabricated accusations by Higgins, and ongoing hostility—Stitch failed to take meaningful corrective action and instead isolated Plaintiff, dismissed his complaints, and ultimately issued him a final warning. The Complaint further alleges that Plaintiff's final complaints and provision of video evidence were met with retaliation culminating in his June 27, 2023, termination, which Plaintiff contends was pretextual and motivated by unlawful discrimination, harassment, and protected whistleblowing activity.

Motion Before the Court

Now before the Court is Defendants' June 12, 2026, motion for summary judgment or, in the alternative, summary adjudication of the Complaint's causes of action and prayer for punitive damages.

The motion is opposed by Plaintiff, who filed an opposition on August 12, 2026.

Motion for Summary Judgment or, in the Alternative, Summary Adjudication [Stitch Industries]

Evidentiary Objections

Reply Objections

NOT RULED ON (Code Civ. Proc., § 437c, subd. (q)): Objection Nos. 1-4

OVERRULED: Objection Nos. 5-25

SUSTAINED: None

Legal Standard

A motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact for trial or that the moving party is entitled to a judgment as a matter of law. (Code of Civ. Proc., § 437c, subd. (c).) A party may also seek summary adjudication of select causes of action, affirmative defenses, claims for damages, or issues of duty, which may be made by a standalone motion or as an alternative to a motion for summary judgment and proceeds in all procedural respects like a motion for summary judgment, but which must completely dispose of the challenged cause of action, affirmative defense, claim for damages, or issue of duty. (Code Civ. Proc., § 437c, subds. (f)(1)-(2), (t).)

The moving party bears the initial burden of production to make prima facie showing no triable material fact issues. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) This burden on summary judgment or adjudication "is more properly one of persuasion rather than proof, since he must persuade the court that there is no material fact for a reasonable trier of fact to find, and not to prove any such fact to the satisfaction of the court itself as though it were sitting as the trier of fact." (*Id.* at p.

850, fn. 11.) If the moving party meets this burden, the burden shifts to the opposing party to make a rebuttal prima facie showing that a triable issue of material fact exists. (Id. at p. 849.)

Where a defendant seeks summary judgment or adjudication, the defendant must show that either “one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action.” (Code Civ. Proc., § 437c, subd. (o)(2).) A defendant may satisfy this burden by showing that the claim “cannot be established” because of the lack of evidence on some essential element of the claim. (Union Bank v. Superior Court (1995) 31 Cal.App.4th 574, 590.) Once the defendant meets this burden, the burden shifts to the plaintiff to show that a “triable issue of one or more material facts exists as to that cause of action or defense thereto.” (Ibid.)

“[I]n ruling on motions for summary judgment courts are to “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” [Citations].” (Cheal v. El Camino Hospital (2014) 223 Cal.App.4th 736, 760.)

Discussion

Summary Judgment, All Claims

Because the Court needs to sustain challenges to all causes of action to grant summary judgment (Code Civ. Proc., § 437c, subds. (f)(1)-(2), (t) [must dispose of all issues]), and because all but one of the causes of action stated in Plaintiff's Complaint survive Stitch's motion, as discussed below, summary judgment is DENIED.

Summary Adjudication, First Cause of Action, FEHA Discrimination, Race/Color

Issue No. 1, No Evidence of Discriminatory Motive

To prevail under a FEHA discrimination disparate treatment theory, plaintiff must prove that he or she suffered an adverse action because of a protected characteristic. (Mixon v. Fair Employment & Housing Comm'n (1987) 192 Cal.App.3d 1306, 1317 [because disparate treatment is based on intentional discrimination, plaintiff must prove employer harbored discriminatory intent; see Scotch v. Art Institute of Calif.-Orange County, Inc. (2009) 173 Cal.App.4th 986, 1007 [plaintiff “must prove by a preponderance of the evidence that there was a ‘causal connection’ between the employee's protected status and the adverse employment decision”].)

Stitch argues that summary adjudication should be granted on this issue because no evidence exists to show that any adverse employment action was a result of discriminatory intent based on Plaintiff's race or color. (Motion, pp. 15-17.) Chiefly, Stitch argues that evidence shows that Plaintiff was terminated for secretly videorecording a coworker (Defendant Higgins) in the workplace without her knowledge or consent, which violated Company policy and California law, all after Plaintiff had received a Final Warning for prior altercations with Higgins in which Plaintiff allegedly once used the N-word when referring to Higgins's boyfriend, and that Plaintiff's deposition testimony purportedly shows that Plaintiff testified that, other than a single use of the N word by Defendant Higgins, a non-supervisor, no other statements were made to Plaintiff with a racial connotation. (Ibid.)

The Court determines that Stitch's argument and supporting evidence, to which no objection was raised by Plaintiff, carries its burden on summary adjudication. Specifically, a reasonable factfinder could determine on the totality of the circumstances above that Plaintiff only identifies a single incident of racial animus, whose causal connection to Plaintiff's termination is broken by Plaintiff's own conduct, as reflected in the Final Warning, and subsequent violation of Company policy by way of recording Defendant Higgins, thus eliminating discriminatory motive.

Stitch having carried its burden on this issue, the burden shifts to Plaintiff to show triable issues.

Plaintiff argues that prima facie discriminatory motive is shown by evidence to the effect that: despite reporting Higgins's use of the N-word against Plaintiff to Plaintiff's supervisor, Mr. Weaver, around April or May 2023, Mr. Weaver failed to report the conduct to Human Resources, instead informally reprimanding Higgins without creating a written record, all despite Stitch having a zero-tolerance standard for racial harassment in the workplace; Higgins then made comments regarding Plaintiff's speech/accent and thereafter nearly drove her car into Plaintiff while backing out of a parking spot; on June 2, 2023, after a verbal confrontation with Higgins at which Plaintiff denies having used the N-word against Higgins's boyfriend, Plaintiff reported Higgins's conduct via email to Weaver, to Assistant Store Manager, Claudia Aroche ("Aroche"), and to HR Business Partner, Jennifer Caruthers; Human Resources was first informed of Higgins's racial and other comments via Plaintiff's email; Stitch Industries issued a Final Warning to both Higgins and Plaintiff on June 7, 2023, with the Final Warning against Plaintiff improperly over-relying on Higgins's version of events to support action against Plaintiff, and Plaintiff protesting the warning with Regional Retail Manager, Cathleen Nguyen; and Stitch fired Plaintiff on June 17, 2023, allegedly for recording Higgins, under circumstances where Stitch alleges that such recording violated Company policy and California law, but where Plaintiff disputes both positions. (Opposition, pp. 9-12.)

While Stitch has objected to the majority of Plaintiff's declaration in support of the above position, the Court has overruled those objections above.

After review, the Court determines that Plaintiff's evidence carries his burden on summary adjudication. Triable issues are raised as to racial discriminatory animus based on Higgins's racial comment and subsequent conduct, Weaver's failure to report the N-word remark by Higgins to Human Resources, Human Resources issuing a warning to Plaintiff based on Higgins's version of events over Plaintiff's version of events, and Stitch's termination of Plaintiff for purportedly violating California law under circumstances where it is not clear that California law was violated, and where, to the extent that the Company alleges violations of its policies, Stitch relies on a vague provision to punish conduct not clearly prohibited in the Code of Conduct. (See Motion, Notice of Lodging, Ex. 3, pp. 13-14 [Workplace Safety and Privacy provision failing to show any mention of recordation and limiting itself to "physical safety" and "personal information"]; see also Motion, 18:1-2 ["Francois violated Stitch's Code of Conduct, specifically Workplace Safety and Privacy and Mutual Respect," fn. omitted].)

Summary adjudication therefore cannot be granted based on this issue.

Issue No. 2, Termination for Legitimate Non-Discriminatory Reasons

The Court adopts its discussion in 2.c.ii.1. above to determine that, *arguendo*, even if Stitch carried its burden of showing it had a legitimate, non-discriminatory reason for terminating Plaintiff's employment, Plaintiff's evidence on summary adjudication shows triable issues as to whether the reason for termination was pretextual.

Summary adjudication therefore cannot be granted based on this issue.

Issue No. 3, No Evidence of Pretext

The Court adopts its discussion in 2.c.ii.1. above to determine that, *arguendo*, even if Stitch carried its burden of showing it had a legitimate, non-discriminatory reason for terminating Plaintiff's employment, Plaintiff's evidence on summary adjudication shows triable issues as to whether the reason for termination was pretextual.

Summary adjudication therefore cannot be granted based on this issue.

Summary adjudication is accordingly DENIED as to the first cause of action.

Summary Adjudication, Second Cause of Action, FEHA Harassment, Race/Color

Issue No. 4, No Evidence of Harassing Motive

The Court adopts its discussion in 2.c.ii.1. above to determine that, *arguendo*, even if Stitch carried its burden of showing no evidence of harassing motive by way of its legitimate, non-discriminatory reason for terminating Plaintiff's employment, Plaintiff's evidence on summary adjudication shows triable issues as to whether the reason for termination was pretextual and can infer discriminatory animus to a reasonable factfinder.

Issue No. 5, No Hostile Work Environment

The Court adopts its discussion in 2.c.ii.1. above to determine that, *arguendo*, even if Stitch carried its burden of showing, under the totality of the circumstances as framed in the moving papers, that Higgins's use of the N-word as a woman who identifies as Black cannot constitute a hostile work environment, Plaintiff's papers frame the facts as supporting an inference that a reasonable person in Plaintiff's position would find the use of a racial epithet in the workplace, even from a person who identifies as the same race, creates a hostile work environment. (See *Bailey v. San Francisco Dist. Attorney's Office* (2024) 16 Cal.5th 611, 633-634 [single incident of use of racial epithet enough to constitute hostile work environment, where no magic number of slurs exists to create a hostile work environment.]) This is a question more appropriate for the trier of fact at trial.

Issue No. 6, Proper Corrective Action

The Court adopts its discussion in 2.c.ii.1. above to determine that, *arguendo*, even if Stitch carried its burden of showing it took proper corrective action, thus defeating the harassment claim, Plaintiff's evidence on summary adjudication shows triable issues as to whether the corrective action taken was insufficient as belated, pretextual, and after-the-fact effort to remedy violations of Plaintiff's rights.

Summary adjudication therefore cannot be granted based on this issue.

Summary adjudication is accordingly DENIED as to the second cause of action.

Summary Adjudication, Third Cause of Action, FEHA Discrimination, National Origin

Issue No. 7, No Evidence of Harassing Motive

As with the first cause of action, after review, the Court determines that, *arguendo*, even if Stitch carries its burden on summary adjudication as to this issue, Plaintiff likewise carries his burden on this issue. Specifically, the Court relies on the chain of inferences in its discussion in 2.c.ii.1. above—use of N-word by Higgins, report to Weaver, mere verbal reprimand from Weaver to Higgins, continued verbal comments by Higgins specifically relating to Plaintiff's manner of speech in English, confrontation on June 2, 2023, recordation on June 14, 2023, and termination on June 17, 2023, with an unclear basis in the Company's Workplace Safety and Privacy policy—to determine that because the above chain of events involved comments by Higgins related to Plaintiff's English accent, which Plaintiff ascribes to his national origin, a fact Plaintiff has shared with his coworkers, and that is apparent from his diction, triable issues remain as to whether a discriminatory motive based on national origin underlay adverse employment actions against Plaintiff.

Issue No. 8, Termination for Legitimate Non-Discriminatory Reasons

The Court adopts its discussion in 2.c.ii.1. above to determine that, *arguendo*, even if Stitch carried its burden of showing it had a legitimate, non-discriminatory reason for terminating Plaintiff's employment, Plaintiff's evidence on summary adjudication shows triable issues as to whether the reason for termination was pretextual.

Issue No. 9, No Evidence of Pretext

The Court adopts its discussion in 2.c.ii.1. above to determine that, *arguendo*, even if Stitch carried its burden of showing it had a legitimate, non-discriminatory reason for terminating Plaintiff's employment, Plaintiff's evidence on summary adjudication shows triable issues as to whether the reason for termination was pretextual.

Summary adjudication is accordingly DENIED as to the third cause of action.

Summary Adjudication, Fourth Cause of Action, FEHA Harassment, National Origin

Issue No. 10, No Evidence of Harassing Motive

The Court adopts its discussions in 2.c.ii.1. and 2.c.iv.1. above to determine that, *arguendo*, even if Stitch carried its burden of showing no evidence of harassing motive by way of its legitimate, non-discriminatory reason for terminating Plaintiff's employment, Plaintiff's evidence on summary adjudication shows triable issues as to whether the reason for termination was pretextual and can infer discriminatory animus to a reasonable factfinder.

Issue No. 11, Termination for Legitimate Non-Discriminatory Reasons

The Court adopts its discussion in 2.c.ii.1. above to determine that, *arguendo*, even if Stitch carried its burden of showing it had a legitimate, non-discriminatory reason for terminating Plaintiff's employment, Plaintiff's evidence on summary adjudication shows triable issues as to whether the reason for termination was pretextual.

Issue No. 12, No Evidence of Pretext

The Court adopts its discussion in 2.c.ii.1. above to determine that, *arguendo*, even if Stitch carried its burden of showing it had a legitimate, non-discriminatory reason for terminating Plaintiff's employment, Plaintiff's evidence on summary adjudication shows triable issues as to whether the reason for termination was pretextual.

Summary adjudication is accordingly DENIED as to the fourth cause of action.

Summary Adjudication, Fifth Cause of Action, FEHA Discrimination, Sex/Gender

Issue No. 13, No Evidence of Harassing Motive

The Court first determines that Stitch carries its burden to show a lack of triable issues as to a evidence of a harassing motive. In its papers, Stitch highlights testimony from Plaintiff to the effect that his only bases for discriminatory conduct based on sex and gender involved (1) strong reactions from female employees to comments by Plaintiff, the only male with Designer title at Plaintiff's then employment, and (2) "overall demeanor." (Motion, 6:14-18, citing Motion, Notice of Lodging, Ex. A, 239:10-24; see Motion, Separate Statement, UMF No. 319 [citing this evidence in support of summary adjudication of the fifth cause of action].) Such evidence shows a lack of causal connection between adverse employment actions suffered by Plaintiff and his sex/gender.

In turn, Plaintiff fails to carry his responsive burden, where the opposition papers largely cite to the same evidence as Stitch's motion to argue the converse: that the 'cold shoulder' attitude perceived from his female colleagues indicated an animus based on sex or gender against Plaintiff. (Opposition, 21:11-19.)

Summary adjudication is thus GRANTED as to the fifth cause of action.

Issue No. 14, Termination for Legitimate Non-Discriminatory Reasons

Having disposed of this cause of action based on Issue No. 13, the Court does not further address Issue No. 14.

Issue No. 15, No Evidence of Pretext

Having disposed of this cause of action based on Issue No. 13, the Court does not further address Issue No. 15.

Summary Adjudication, Sixth Cause of Action, FEHA Failure to Prevent Harassment/Discrimination

Issue No. 16, Derivative Claim Fails as Primary Claims Failed

The Court rejects Stitch's position on this issue out of hand based on the Court denying relief as to the first through fourth causes of action, as discussed above.

Issue No. 17, Proper Corrective Action

The Court adopts its discussion in 2.c.ii.1. above to determine that, arguendo, even if Stitch carried its burden of showing it took corrective action to Plaintiff's reports of Higgins's conduct, Plaintiff's evidence on summary adjudication shows triable issues as to whether the corrective action was, for example, illusory when Weaver only verbally reprimanded Higgins for use of the N-word, with Stitch only taking action against Higgins after further confrontations with Plaintiff, and Plaintiff contending Stitch relied on the harasser's own version of events over Plaintiff's in issuing Plaintiff's Final Warning prior to termination.

Summary adjudication is accordingly DENIED as to the sixth cause of action.

Summary Adjudication, Seventh Cause of Action, FEHA Retaliation

Issue No. 18, No Evidence of Protected Activity

The Court adopts its discussion in 2.c.ii.1. above to determine that, arguendo, even if Stitch carried its burden of showing no protected activity, Plaintiff's evidence on summary adjudication shows triable issues as to whether he engaged in protected activity when he (1) complained of use of the N-word by Higgins to Weaver and (2) complained of Higgins's conduct generally in Plaintiff's interactions with Stitch beginning with June 2023 email to management.

Issue No. 19, No Causal Link to Protected Activity

The Court adopts its discussion in 2.c.ii.1. above to determine that, arguendo, even if Stitch carried its burden of showing no causal link between protected activity and termination, Plaintiff's evidence on summary adjudication shows triable issues as to whether the reason for termination was pretextual, supporting a causal link to protected activity.

Issue No. 20, Termination for Legitimate Non-Discriminatory Reasons

The Court adopts its discussion in 2.c.ii.1. above to determine that, arguendo, even if Stitch carried its burden of showing it had a legitimate, non-discriminatory reason for terminating Plaintiff's employment, Plaintiff's evidence on summary adjudication shows triable issues as to whether the reason for termination was pretextual.

Issue No. 21, No Evidence of Pretext

The Court adopts its discussion in 2.c.ii.1. above to determine that, arguendo, even if Stitch carried its burden of showing it had a legitimate, non-discriminatory reason for terminating Plaintiff's employment, Plaintiff's evidence on summary adjudication shows triable issues as to whether the reason for termination was pretextual.

Summary adjudication is accordingly DENIED as to the seventh cause of action.

Summary Adjudication, Eighth Cause of Action, Lab. Code, § 1102.5 Retaliation

Issue No. 22, No Evidence of Protected Activity

The Court adopts its discussions in 2.c.ii.1. and 2.c.viii.1 above to determine that, arguendo, even if Stitch carried its burden of showing no protected activity, Plaintiff's evidence on summary adjudication shows triable issues as to whether he engaged in protected activity when he (1) complained of use of the N-word by Higgins to Weaver and (2) complained of Higgins's conduct generally in Plaintiff's interactions with Stitch beginning with June 2023 email to management.

Issue No. 23, Termination for Legitimate Non-Discriminatory Reasons

The Court adopts its discussion in 2.c.ii.1. above to determine that, arguendo, even if Stitch carried its burden of showing it had a legitimate, non-discriminatory reason for terminating Plaintiff's employment, Plaintiff's evidence on summary adjudication shows triable issues as to whether the reason for termination was pretextual.

Summary Adjudication, Ninth Cause of Action, Wrongful Termination

Issue No. 24, No Violation of Law Supports Claim

The Court adopts its discussion as to the first through fourth and seventh to eighth causes of action above to determine that, arguendo, even if Stitch carried its burden of showing no triable issues as to wrongful termination, Plaintiff's evidence on summary adjudication does the converse, showing triable issues as to whether the reason for termination was pretextual and in fact instead shows violations of Plaintiff's rights.

Summary Adjudication, Prayer for Relief, Punitive Damages

Issue No. 25, No Evidence of Involvement of Officer, Director, or Managing Agent in Oppression, Fraud, or Malice

Here, arguendo, even if the Court accepts Stitch's position on summary adjudication vis-à-vis punitive damages, the Court adopts its discussion in 2.c.ii.1. above to determine that evidence exists for a factfinder to determine that (1) Weaver did not properly respond to the initial complaint by Plaintiff against Higgins and (2) Stitch generally acted with oppression and malice by terminating Plaintiff's employment, as based on a Final Warning whose basis Plaintiff disputes as being injected with bias from Higgins, and as based on purported violations of California law and company policy, where neither basis is clear from the full record on summary adjudication.

Conclusion

Defendant Stitch Industries, Inc.'s motion for summary judgment or, in the alternative, summary adjudication is:

(1) DENIED as to summary judgment;

(2) DENIED as to summary adjudication of the first to fourth and sixth to ninth causes of action and the prayer of punitive damages, as based on Issue Nos. 1-12 and 16-25;

(3) GRANTED as to summary adjudication of the fifth cause of action as based on Issue Nos. 13, i.e., summary adjudication of the fifth cause of action based on failure to show prima facie dispute of discrimination based on sex/gender; and

(4) MOOT as to summary adjudication of the fifth cause of action, as based on Issue Nos. 14-15.

Motion for Summary Judgment or, in the Alternative, Summary Adjudication [Higgins]

Legal Standard

See *supra* at § 2.a.

Discussion

Summary Judgment, All Claims

Because the Court denies summary adjudication as to all challenges in Defendant Higgins's motion, summary judgment is DENIED. (Code Civ. Proc., § 437c, subds. (f)(1)-(2), (t).)

Summary Adjudication, Second Cause of Action, FEHA Harassment, Race/Color

Issue Nos. 1-2

The Court adopts its discussion in 2.c.iii.1. to find that triable issues remain as to the two issues raised by Higgins against this claim on summary adjudication, i.e., no hostile work environment based on the Complaint's allegations, and no evidence of discriminatory motive based on an alleged protected characteristic.

Summary Adjudication, Fourth Cause of Action, FEHA Harassment, National Origin

Issue Nos. 3-4

The Court adopts its discussion in 2.c.v.1. to find that triable issues remain as to the two issues raised by Higgins against this claim on summary adjudication, i.e., no hostile work environment based on the Complaint's allegations, and no evidence of discriminatory motive based on an alleged protected characteristic.

Summary Adjudication, Prayer for Relief, Punitive Damages

Issue No. 5, No Evidence of Oppression, Fraud, Malice

The Court adopts its discussion in 2.c.ii.1., 2.c.iii.2., and 2.c.xi.1. above to determine that, arguendo, even if Higgins carried her burden of showing no triable issues as to oppression, malice, or fraud, Plaintiff's evidence on summary adjudication shows triable issues as to whether Higgins's conduct, including use of the N-word and apparent references to Plaintiff's accent, support findings of oppression or malice. This is a question more appropriate for the trier of fact at trial.

Conclusion

Defendants Riyah Higgins's motion for summary judgment or, in the alternative, summary adjudication is DENIED.

Defendants Stitch Industries and Riyah Higgins are ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: September 8, 2026 _____

MARK C. KIM

Judge of the Superior Court